

**BUREAU OF INDIAN STANDARDS**  
**(CENTRAL MARKS DEPARTMENT - I)**

**Our Ref: CMD-I/2:16:6**

**23 July 2024**

**Subject: Guidelines for surveillance during operation of Certificate of Conformity for Stampings/ Laminations/cores of transformers (with or without winding) under the conformity assessment Scheme – IV of Schedule – II of BIS (Conformity Assessment) Regulations, 2018**

- 1) This document stipulates the guidelines for surveillance by BIS with respect to monitoring the operation of Certificates of Conformity (CoC) granted by BIS to manufacturers of Stampings/laminations/ cores of transformers (with or without winding).
- 2) These guidelines are to be read in conjunction with the BIS Act, 2016; BIS Rules, 2018 and BIS (Conformity Assessment) Regulations, 2018 and guidelines framed thereunder, as per Scheme–IV of Schedule–II of these regulations as well as any Product Specific Guidelines for grant of certificate of conformity for Stampings/ Laminations/cores of transformers (with or without winding) under Scheme - IV of Schedule - II of BIS (Conformity Assessment) Regulations, 2018.
- 3) The intent of surveillance in case of this product is to check for compliance to the essential requirement for this product mandated in the Steel and Steel Products (Quality Control) Order, 2020 i.e. that Stampings/laminations/cores of transformers (with or without winding) shall be made from BIS standard marked Grain Oriented Electrical Steel Sheet and Strip conforming to IS 3024:2015 or Cold rolled non-oriented electrical steel sheet and strip conforming to IS 648:2006 or Fe based amorphous strip delivered in the semi-processed state conforming to IS 16585:2016.
- 4) The primary mode of surveillance in this case is factory surveillance i.e. visits to the manufacturing units which are holding CoC. These surveillance visits may be conducted by the BIS certification officer or technical auditor of empanelled agency through CSMD. However, as far as possible, it is preferable that surveillance visits especially under Scheme-IV are carried out by the BIS certification officer at the concerned BO.
- 5) During the surveillance visit, the following actions shall be taken up:
  - (i) Physical verification of availability of ISI marked material and dispatch of stampings/lamination/cores under CoC
    - (a) During the visit, the labels on the ISI Marked material available shall be physically verified to check that the material has been manufactured by a BIS license holder holding a valid licence.

- (b) In addition, the thickness of the coil of ISI marked electrical steel/material as well as the thickness of the stampings/laminations made from said ISI marked material shall be checked to verify the traceability.
  - (c) In addition, materials being dispatched shall be checked to ensure that they are being sent with valid CoC bearing the assigned CoC Number with test certificate.
- (ii) Verification of traceability through records
  - (a) As per product specific guidelines for grant of CoC, Holder of certificate of conformity is required to submit to the concerned BO the details of electrical steel purchased and consumed by them, enclosing the Mill Test Certificates and also the details of Stampings/ laminations/ cores of transformers manufactured and dispatched by them from this steel, on a quarterly basis. These submitted records shall be cross checked with the records available in the factory for conformity.
  - (b) The compliance to the defined Inspection and Testing Plan shall be checked.
  - (c) Details of raw material purchase/consumption and production/dispatch records as declared by the CoC holder shall be verified to check that only electrical steel/material manufactured by a BIS license holder holding valid licence is being used to manufacture the product and also that the product is being dispatched under the valid CoC with a test certificate.
- 6) Certification, Surveillance and Monitoring Department (CSMD) shall prepare and circulate the plan for domestic surveillance in case of this product. The inspection and surveillance activities of foreign manufacturers shall be planned and prepared by Foreign Manufacturers Certification Department (FMCD) with approval of the competent authority. The factory inspection and surveillance activities of foreign manufacturers (and domestic manufacturers, till further orders) shall be undertaken by certification officers of BIS.
- 7) Generally, one surveillance visit per year may be carried out for each manufacturing unit holding a certificate of conformity. For any special inspection visit (other than surveillance and complaint investigation), the inspection charges of ₹ 7,000 shall be taken in advance.
- 8) Till the time web/mobile application based module for surveillance is updated for this product, surveillance visits under Scheme-IV shall be reported with requisite details in the presently available space fields of web/mobile application. The remaining places may be left blank or filled as Not applicable. At the end of the report, any other should be selected and scanned pages of inspection/factory test reports are to be uploaded. The reporting template for guidance is enclosed as ***Annexure - I***.

- 9) The surveillance inspection may be deemed unsatisfactory in the following situations
- (i) Use of non ISI marked material to manufacture Stampings/laminations/ cores of transformers
    - (a) If there is sufficient evidence (through physical verification, verification of records or combination thereof) that the CoC holder has used non ISI marked material to manufacture Stampings/laminations/ cores of transformers and/or supplied this product without the valid CoC with a test certificate.
    - (b) In such cases, review of performance of the CoC holder shall be taken up and based on the same, the CoC may be placed under suspension by the Head BO. Simultaneously, a show-cause notice shall be issued to the CoC holder informing them that BIS intends to pursue legal action against them for violation of the QCO and giving them 15 days time to establish that they did not violate the QCO (personal hearing may be granted). (template for guidance enclosed as ***Annexure - II***) Revocation of suspension may be considered once the CoC holder is able to establish that they did not violate QCO. If not, suspension may be followed by initiation of cancellation proceedings.
  - (ii) Noncompliance to SIT and minor discrepancies in records etc.
    - (a) In case deviation from prescribed SIT or minor discrepancies is observed in records but which does not constitute sufficient evidence that the CoC holder has used non ISI marked material to manufacture Stampings/laminations/ cores of transformers and/or supplied this product without the valid CoC with a test certificate, the CoC holder shall be advised to take corrective actions and inform within prescribed time limit (normally not more than 15 days). (template for guidance enclosed as ***Annexure - III***)
    - (b) In such cases, if it is observed that the CoC holder has not taken sufficient corrective actions, the case may be processed for imposition of suspension. Before imposition of suspension, a notice shall be issued by the Head BO seeking explanation from CoC holder giving 10 days time from the date of issuance of the notice. (template for guidance enclosed as ***Annexure - IV***)
      - (A) In case no reply is received within the stipulated time, the suspension shall be imposed.
      - (B) In case reply is received within stipulated time, it shall be examined and reviewed by the Head BO. If the reply received is satisfactory informing all the requisite corrective actions have been taken by CoC holder, the case shall be taken up for verification of corrective actions through immediate surveillance visit preferably within the next 20 days.

- (C) In case during the first surveillance visit after issuing the notice for suspension, it is observed that the corrective actions have not been implemented by the CoC holder, the case may be processed for imposition of suspension without any further notice.
  - (D) In case reply received is partial or incomplete, the case may be processed for imposition of suspension without any further notice.
  - (c) The decision to impose suspension shall be communicated to the CoC holder. (template for guidance enclosed as ***Annexure - V***) Suspension may be revoked after verification of corrective actions undertaken by the manufacturer.
- 10)** (i) The BOs may arrange visit(s) as given below to check compliance with suspension orders and any possible violation of the BIS Act, 2016 and Rules, Regulations framed thereunder:
- (a) No response received from the CoC holder within 15 days from the date of communication of necessary instructions by BIS - Visit within next 15 days.
  - (b) If there is still no response from the CoC holder after the visit, the case may be processed for initiating proceedings for cancellation.
  - (ii) In case of detection of misuse or any violation of the provisions of the BIS Act, 2016 and Rules, Regulations framed thereunder, further necessary action shall also be taken as per provisions.
- 11)** Before cancelling a certificate of conformity, a cancellation notice of not less than twenty-one days shall be given (template attached ***Annexure - VI***). Before issuing cancellation notice, the DDGR shall satisfy herself/himself about completeness of information and facts of the case. Where DDGR is satisfied that it is necessary to issue cancellation notice, she/he shall record the reasons while taking decision for issuance of cancellation notice.
- (i) In case no reply is received within stipulated time, the certificate of conformity may be cancelled.
  - (ii) In case reply is received within stipulated time, it shall be examined and reviewed by the DDGR. Where the DDGR is satisfied that it is necessary to cancel the certificate of conformity, she/he shall record the reasons while taking decision for cancellation.
  - (iii) If the certificate of conformity is not cancelled, the matter shall be taken up for corrective actions and its verification as per applicable paras (9(ii)) of this document.

(iv) The competent authority shall take into account merits of the case and facts presented by manufacturer during personal hearing and shall pass speaking orders for the final decision taken.

(v) The decision to cancel the certificate of conformity shall be communicated to the manufacturer. (template attached as *Annexure - VII*)

**Annexure - I**  
**BUREAU OF INDIAN STANDARDS**  
**REPORT OF SURVEILLANCE INSPECTION**  
(. . . . . inspection since the grant of CoC/Renewal)

CoC NO -  
Valid upto:

IR No.....

- 1) (i) CoC Holder:  
(ii) Product: Stampings/ Laminations/cores of transformers (with or without winding)
- 2) Special inspection charges, if applicable
- 3) Date of inspection
- 4) Person(s) contacted
- 5) Previous inspection  
(i) Date (ii) Conducted by  
(iii) Conclusions and recommendations  
(iv) Result of last 2 SURVEILLANCE VISITS:
- 6) Action taken by firm on advice on previous visit / failure of sample:
- 7) Verify the following: (Deviations if any to be recorded)

**(i) Physical verification of availability of ISI marked material and dispatch of stampings/lamination/cores under CoC**

- (a) ISI Marked material available has been manufactured by a BIS license holder holding valid licence. (Yes/No)
- (b) Thickness of the coil of ISI marked electrical steel/material as well as thickness of the stampings/laminations made from said ISI marked material are the same (Yes/No/ N.A.) - In case of N.A., reasons to be stated
- (c) Product being dispatched being sent with valid CoC bearing the assigned CoC Number. (Yes/No)

**(ii) Verification of traceability of through records**

- (a) Factory Records of the details of electrical steel purchase and consumption, including Mill Test Certificates, and details of Stampings/ laminations/ cores of transformers manufactured and dispatched matches with quarterly data submitted to BIS and indicates use of only ISI Marked material for manufacture (Yes/No)
- (b) Compliance to Scheme of Inspection and Testing (SIT) requirements and maintenance of Test records satisfactorily : Yes/No
- (c) The product is being dispatched under the valid CoC with a test certificate indicating the assigned CoC number. (Yes/No)

**(iii) Any major change without approval / intimation : Yes / No**

*\*In case no is recorded against any of the above, suitable remarks shall be mentioned*

- 8) Sampling of Product for Independent Test (market sample of ISI Marked material) :
- (i) Code :
  - (ii) IS No. :
  - (iii) Product / Size / variety :
  - (iv) Batch no. / DOM
  - (v) Laboratory :
  - (vi) Counter sample : Yes / No
  - (vii) Name and Licence number of the manufacturer (BIS licensee Mill)

Note : Details on test request to be enclosed.

- 9) Conclusions and Recommendations Satisfactory / Need improvement / Unsatisfactory
- (i) Any action to be taken including suspension
  - (ii) Any other observation/comments for better appraisal of the report

Inspected by:  
(Name)  
Designation:  
Date:

## Annexure - II

**Our Ref: ..... BO/Coc No.**

**Date:**

**Subject: Suspension of CoC ..... for ..... (Product name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted by BIS under its conformity assessment Scheme-IV for ..... (Product name) which is valid up to .....
- 2) Further, reference is invited to discrepancies observed during surveillance inspection visit dated ..... (copy enclosed)
- 3) Due to the ..... (BO to mention reasons and details of non-conformities) and in accordance with the provisions of clause (a) of sub-paragraph 5 of paragraph 11 of Scheme-IV of Schedule-II of the BIS (Conformity Assessment) Regulations, 2018, it has been decided to put the certificate of conformity granted to you under suspension with immediate effect.
- 4) You are not permitted to use the above mentioned product with certificate of conformity including dispatch of any stock in hand. You are, therefore, advised to ensure stoppage of use of certificate of conformity for the product with immediate effect & confirm the same immediately by suitable means like speed post/e-mail/online portal. You are also advised to submit us the following details as on the date of receipt of communication:
  - i) Quantity of material held in stock;
  - ii) (a) Batch/Control Unit (C.U.)/Lot No(s). and date(s) of manufacture;  
(b) Brand;  
(c) Size/type/grade/variety;
  - iii) Packing details; and
  - iv) Pending Orders for material, if any with purchasers' names and addresses
- 5) You are further required to inform BIS within 15 days of the issuance of this letter
  - i) the details of corrective actions taken along with applicable supporting evidence
  - ii) the quantity available in your stock pertaining to non-conforming Batch/C.U./Lot No., failing which it will be presumed that you do not have such material in stock.



- 6) As you have been found contravening the essential requirements against the certificate of conformity is granted to you which is also a violation of the ..... (Quality Control) Order, 20...., BIS is considering the matter to launch prosecution in the Court of Law for violation of said Quality Control Order. If you desire to be heard in person or through a representative authorised by you on your behalf, you may seek an appointment for such a hearing with the undersigned, after submitting your written explanation.
- 7) Kindly note that, according to Paragraph 5 of Scheme-IV of Schedule-II under the BIS (Conformity Assessment) Regulations, 2018, the certificate of conformity fee is payable by you even during the period when certificate of conformity is not in operation due to suspension.
- 8) The reply with information sought should be sent immediately by return speed post/e-mail but not later than 15 days from the issuance of this letter failing which your certificate of conformity will be considered for cancellation as per Regulation 19 of the BIS (Conformity Assessment) Regulations, 2018.
- 9) Kindly acknowledge the receipt and ensure compliance.

Encl. As above

Signature of designated authority  
(Name of designated authority)

Copy to: Quality Control In-charge  
(Manufacturer Name & Address)

### Annexure - III

**Our Ref: ..... BO/Coc No.**

**Date:**

**Subject: Unsatisfactory performance pertaining to CoC ..... for  
..... (Product name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted by BIS under its conformity assessment Scheme-IV for ..... (Product name) which is valid up to .....
- 2) A surveillance inspection was carried out at your factory premises on..... During the visit, following discrepancies in the operation of the certificate of conformity were observed and communicated to you (Ref. Discrepancy-cum-Advisory Report issued during the visit, copy enclosed):
- 3) You are advised to take appropriate corrective actions to avoid such discrepancies in future and intimate BIS the details of actions taken along with applicable supporting evidence within 15 days from the issuance of this letter.
- 4) You are required to investigate the reasons for non-conformity by reviewing your quality assurance system and to take appropriate corrective actions which are relevant to the observed non-conformities. Some probable causes that could have led to occurrence of this non-conformity may be attributed (but is not limited) to ..... The quality assurance system of your firm requires review & improvement to ensure that the actions taken are appropriate and relevant to prevent recurrence of non-conformities observed.
- 5) Kindly note that in case, complete/satisfactory reply is not received within the stipulated period or performance during next surveillance visit is also found unsatisfactory, suspension may be imposed in accordance with clause (a) of sub-paragraph (5) of Paragraph 11 of Scheme - IV of Schedule - II under the BIS (Certification) Regulations, 2018.
- 6) Kindly acknowledge the receipt and ensure compliance.

Thanking you

Signature of designated authority  
(Name of designated authority)

Encl: As above

**Annexure - IV**

**Our Ref: ..... BO/CoC No.**

**Date:**

**Subject: Notice for suspension of CoC ..... for..... (Product Name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted to you by BIS under its conformity assessment Scheme-IV for ..... (Product name) which is valid up to .....
- 2) Further, reference is invited to discrepancies observed during surveillance inspections dated ..... and our earlier letter dated ..... (copies enclosed)
- 3) Due to the ..... (BO to mention reasons with details) and in accordance with the provisions of clause (a) of sub-paragraph 5 of paragraph 11 of Scheme-IV of Schedule-II of the BIS (Conformity Assessment) Regulations, 2018, it is proposed to suspend the certificate of conformity No. ....
- 4) In case you have anything to say in this matter, you may submit your explanation to the Bureau within 10 days from the date of issuance of this notice. In case no reply is received or reply received is incomplete or you fail to undertake corrective actions, your certificate of conformity will be put under suspension without any further reference to you.
- 5) This notice is being issued without any prejudice to the right of this Bureau to take any legal action under the BIS Act, 2016.
- 6) Kindly acknowledge the receipt and ensure compliance.

Thanking You,

Signature of designated authority  
(Name of designated authority)

Encl.: As above

**Annexure - V**

**Our Ref: ..... BO/Coc No.**

**Date:**

**Subject: Suspension of CoC ..... for ..... (Product name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted by BIS under its conformity assessment Scheme-IV for ..... (Product name) which is valid up to .....
- 2) Further, reference is invited to our earlier letter dated ..... and discrepancies observed during surveillance inspection visits dated ..... and ..... (copies enclosed)
- 3) Due to the ..... (BO to mention reasons and details of non-conformities) and in accordance with the provisions of clause (a) of sub-paragraph 5 of paragraph 11 of Scheme-IV of Schedule-II of the BIS (Conformity Assessment) Regulations, 2018, it has been decided to put the certificate of conformity granted to you under suspension with immediate effect.
- 4) You are not permitted to use the above mentioned product with certificate of conformity including dispatch of any stock in hand. You are, therefore, advised to ensure stoppage of use of certificate of conformity for the product with immediate effect & confirm the same immediately by suitable means like speed post/e-mail/online portal. You are also advised to submit us the following details as on the date of receipt of communication:
  - i) Quantity of material held in stock;
  - ii) (a) Batch/Control Unit (C.U.)/Lot No(s). and date(s) of manufacture;  
(b) Brand;  
(c) Size/type/grade/variety;
  - iii) Packing details; and
  - iv) Pending Orders for material, if any with purchasers' names and addresses
- 5) You are further required to inform BIS within 15 days of the issuance of this letter
  - i) the details of corrective actions taken along with applicable supporting evidence
  - ii) the quantity available in your stock pertaining to non-conforming Batch/C.U./Lot No., failing which it will be presumed that you do not have such material in stock.

- 6) Kindly note that, according to Paragraph 5 of Scheme-IV of Schedule-II under the BIS (Conformity Assessment) Regulations, 2018, the certificate of conformity fee is payable by you even during the period when certificate of conformity is not in operation due to suspension.
- 7) The reply with information sought should be sent immediately by return speed post/e-mail but not later than 15 days from the issuance of this letter failing which your certificate of conformity will be considered for cancellation as per Regulation 19 of the BIS (Conformity Assessment) Regulations, 2018.
- 8) Kindly acknowledge the receipt and ensure compliance.

Encl. As above

Signature of designated authority  
(Name of designated authority)

Copy to: Quality Control In-charge  
(Manufacturer Name & Address)

**Annexure - VI**

**Our Ref: ..... BO/Coc No.**

**Date:**

**Subject: Notice for cancellation of CoC ..... for .....(Product Name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted by BIS under its conformity assessment Scheme-IV for ..... (Product name) which is valid up to .....
- 2) The following product non-compliances were observed with regard to the operation of the above certificate of conformity which is in violation of the provision of Regulation ..... of the BIS (Conformity Assessment) Regulations, 2018.

(RO/BO to give the reasons for proposed cancellation in this space)

- 3) In view of the above, it is proposed to cancel the certificate of conformity No. .... held by you in accordance with the provisions under Section 13 of the BIS Act, 2016 read in conjunction with the provisions of Regulation 19 of the BIS (Conformity Assessment) Regulations, 2018.
- 4) Your certificate of conformity is already under suspension w.e.f. .... as communicated vide our letter dated .... It is to reiterate that during the suspension, you are not permitted to use the certificate of conformity including dispatch of any stock in hand. You are advised to re-confirm that you have stopped usage of the certificate of conformity by suitable means like speed post/e-mail/online portal. You are also advised to submit us the following details as on the date of receipt of communication:
  - i) Quantity of material held in stock
  - ii) (a) Batch No(s) and date(s) of manufacture;  
(b) Brand;  
(c) size/type/grade/variety
  - iii) Packing details; and
  - iv) Pending orders, if any with purchasers' name and address

- 5) In case you have anything to say in this matter, you may submit your explanation to the Bureau within 21 days from the date of issue of this notice, failing which, it will be presumed that you are no longer interested in continuing the said certificate of conformity and as such the certificate of conformity will be processed for cancellation without any further reference to you.  
This notice is being issued without any prejudice to the right of this Bureau to take any legal action under section 29 of the BIS Act, 2016.
- 6) If you desire to be heard in person or through a representative authorised by you on your behalf, you may seek an appointment for such a hearing with the undersigned, after submitting your written explanation.
- 7) Kindly acknowledge the receipt and ensure compliance.

Thanking You,

Signature of designated authority  
(Name of designated authority)

Encl.: As above

**Annexure - VII**

**Our Ref: ..... BO/Coc No.**

**Date:**

**Subject: Cancellation of CoC ..... for .....(Product Name)**

M/s

Kind Attn: (Name of the CEO/MD)

Dear Madam/Sir,

- 1) This has reference to the certificate of conformity No. .... granted by BIS under its conformity assessment Scheme-IV for ..... (Product name) which was valid up to .....
- 2) Further, reference is invited to cancellation notice dated ....., your reply dated ..... and personal hearing held on .....
- 3) It has been decided to cancel your certificate of conformity after ..... as per the provision of Regulation ..... of the BIS (Conformity Assessment) Regulations, 2018 due to the following reasons:  
(BO to mention the reasons)
- 4) Your above mentioned certificate of conformity, therefore, stands cancelled w.e.f. .... As already informed earlier as well, you are neither entitled to use this certificate of conformity after ..... or to claim in your advertisements or in any other publicity material that you are a holding certificate of conformity granted by BIS on your product after .....
- 5) Any publicity material such as handbills, pamphlets, letterheads, etc. claiming that you hold BIS certificate of conformity for your above mentioned product should be destroyed or such markings obliterated/defaced immediately. This should be confirmed by you at the earliest, positively within 15 days.
- 6) Further, you are advised to furnish a statement of your product as follows:
  - i) Quality of material held in stock:
    - a) Type or Grade
    - b) Variety
    - c) Brand, if any
  - ii) Batch/Control Unit (C.U.)/Lot No.
  - iii) Packing
  - iv) Pending orders, if any and purchaser's name and address



- 7) Please note that any material found with BIS certificate of conformity after ....., will be deemed to be the violation of the provisions of the BIS Act 2016, and Rules and Regulations framed thereunder and action will be taken as per the BIS Act 2016, and Rules and Regulations framed thereunder.
- 8) You are advised to surrender the original certificate of conformity along with all the attachments/endorsements sheets, etc. and also submit an undertaking to the fact that you have not retained photocopy of the said documents and shall not produce it anywhere under any circumstances subject to prior permission from BIS in this regard.
- 9) If you are aggrieved by the above order, you may prefer an appeal to the Director General, Bureau of Indian Standards within ninety days from the date of the order with a fee of two thousand rupees as per provisions of section 34 of the BIS Act 2016 read along with Rule 37 of the BIS Rules 2018.
- 10) Please acknowledge the receipt and ensure compliance.

Signature of designated authority  
(Name of designated authority)